



Magna Carta (1297)

1297 CHAPTER 9 25 Edw 1 cc 1 9 29

X1

X2

THE GREAT CHARTER OF THE LIBERTIES OF ENGLAND, AND OF THE LIBERTIES OF THE FOREST; CONFIRMED BY KING EDWARD, IN THE TWENTY-FIFTH YEAR OF HIS REIGN.

Editorial Information

- X1** The original text of this Act was not modern English. The traditional translation appears first with obsolete characters modernised. The original text (as an image) appears second. The full reference to the chapter numbers of this Statute includes c. 37 of which has been partly repealed.
- X2** The Latin Indorsement beginning “Magna Carta” is at the bottom of Membrane 38, of the Roll, being the last of the three Membranes on which are entered The Inspeximus and Confirmation of the Great Charter and of the Charter of the Forest, the Charter of Confirmation in French, and the King's Pardon; in Order as they are printed from hence [Statutes of the Realm, volume 1, page 114] to the End of page 124. In all former Printed Copies the Great Charter and the Charter of the Forest, as granted by King Henry III. and confirmed by King Edward I. have been inserted under the ninth year of K. Henry III. See the Collection of Charters of Liberties preceding the Statutes [in Statutes of the Realm, volume 1], and Chapter II. of the Introduction prefixed to [the same] Volume. The Various Readings marked *L.* are from the Charter of Inspeximus 25 Edw. I, under the Great Seal preserved among the Archives of the City of London. See page 33, of the Charters of Liberties [in Statutes of the Realm, volume 1].

EDWARD by the Grace of God King of England, Lord of Ireland, and Duke of Guyan, [^{X3}to all Archbishops, Bishops, &c.] We have seen the Great Charter of the Lord Henry sometimes King of England, our Father, of the Liberties of England in these words:

Editorial Information

- X3** Variant reading of the text noted in *The Statutes of the Realm* as follows: *To All to whom these present Letters shall come; Greeting.*

HENRY by the Grace of God King of England, Lord of Ireland, Duke of Normandy and Guyan, and Earl of Anjou, to all Archbishops, Bishops, Abbots, Priors, Earls, Barons,

Changes to legislation: There are currently no known outstanding effects for the Magna Carta (1297). (See end of Document for details)

Sheriffs, Provosts, Officers, and to all Bailiffs, and other our faithful Subjects, which shall see this present Charter, Greeting: Know Ye, that We, unto the honour of Almighty God, and for the salvation of (^{X4}) the souls of our Progenitors and Successors [Kings of England,] to the advancement of Holy Church and amendment of our Realm, of our meer and free will, have given and granted to all Archbishops, Bishops, Abbots, Priors, Earls, Barons, and to all [Freemen] of this our Realm, these Liberties following, to be kept in our Kingdom of England for ever.

Editorial Information

X4 Variant reading of the text noted in *The Statutes of the Realm* as follows: *our Soul and*

I Confirmation of Liberties.

FIRST, We have granted to God, and by this our present Charter have confirmed, for Us and our Heirs for ever, that the Church of England shall be free, and shall have all her whole Rights and Liberties inviolable. We have granted also, and given to all the Freemen of our Realm, for Us and our Heirs for ever, these Liberties under-written, to have and to hold to them and their Heirs, of Us and our Heirs for ever.

II–VI F1

Textual Amendments

F1 Cc. 2–6 repealed by [Statute Law Revision Act 1863 \(c. 125\)](#) and [Statute Law \(Ireland\) Revision Act 1872 \(c. 98\)](#)

VII F2

Textual Amendments

F2 C. 7 repealed by [Administration of Estates Act \(1925\) \(c. 23\)](#), s. 56, Sch. 2 Pt. I, [Administration of Estates Act \(Northern Ireland\) 1955 \(c. 24\)](#), s. 46, **Sch. 3** and [Statute Law \(Repeals\) Act 1969 \(c. 52\)](#), **Sch. Pt. I**

VIII F3

Textual Amendments

F3 C. 8 repealed by [Statute Law \(Repeals\) Act 1969 \(c. 52\)](#), **Sch. Pt. I**

IX Liberties of London, &c.

THE City of London shall have all the old Liberties and Customs [which it hath been used to have]. Moreover We will and grant, that all other Cities, Boroughs, Towns,

Changes to legislation: There are currently no known outstanding effects for the Magna Carta (1297). (See end of Document for details)

and the Barons of the Five Ports, and all other Ports, shall have all their Liberties and free Customs.

X F4

Textual Amendments
F4 C. 10 repealed by [Statute Law Revision Act 1948 \(c. 62\)](#)

XI— F5
XII.

Textual Amendments
F5 Cc. 11, 12 repealed by [Civil Procedure Acts Repeal Act 1879 \(c. 59\)](#), [Sch.](#)

XIII F6

Textual Amendments
F6 C. 13 repealed by [Statute Law Revision Act 1863 \(c. 125\)](#) and [Statute Law \(Ireland\) Revision Act 1872 \(c. 98\)](#)

XIV F7

Textual Amendments
F7 C. 14 repealed by [Criminal Law Act 1967 \(c. 58\)](#), [Sch. 3 Pt. I](#) and [Criminal Law Act \(Northern Ireland\) 1967 \(c. 18\)](#), [Sch. 2 Pt. I](#)

XV— F8
XVI

Textual Amendments
F8 Cc. 15, 16 repealed by [Statute Law \(Repeals\) Act 1969 \(c. 52\)](#), [Sch. Pt. I](#)

XVII F9

Textual Amendments
F9 C. 17 repealed by [Statute Law Revision Act 1892 \(c. 19\)](#)

Changes to legislation: There are currently no known outstanding effects for the Magna Carta (1297). (See end of Document for details)

XVIII **F10**

Textual Amendments

F10 C. 18 repealed by [Crown Proceedings Act 1947 \(c. 44\)](#), **Sch. 2**

XIX– **F11**
XXI

Textual Amendments

F11 Cc. 19–21 repealed by [Statute Law Revision Act 1863 \(c. 125\)](#) and [Statute Law \(Ireland\) Revision Act 1872 \(c. 98\)](#)

XXII **F12**

Textual Amendments

F12 C. 22 repealed by [Statute Law Revision Act 1948 \(c. 62\)](#)

XXIII **F13**

Textual Amendments

F13 C. 23 repealed by [Statute Law \(Repeals\) Act 1969 \(c. 52\)](#), **Sch. Pt. I**

XXIV **F14**

Textual Amendments

F14 C. 24 repealed by [Statute Law Revision Act 1863 \(c. 125\)](#) and [Statute Law \(Ireland\) Revision Act 1872 \(c. 98\)](#)

XXV **F15**

Textual Amendments

F15 C. 25 repealed by [Statute Law Revision Act 1948 \(c. 62\)](#)

XXVI **F16**

Changes to legislation: There are currently no known outstanding effects for the Magna Carta (1297). (See end of Document for details)

Textual Amendments

F16 C. 26 repealed by the Acts 9 Geo. 4 c. 31 s. 1 and 10 Geo. 4 c. 34 s. 1

XXVII.....F17
XXVIII

Textual Amendments

F17 Cc. 27, 28 repealed by Statute Law Revision Act 1863 (c. 125) and Statute Law (Ireland) Revision Act 1872 (c. 98)

XXIX Imprisonment, &c. contrary to Law. Administration of Justice.

NO Freeman shall be taken or imprisoned, or be disseised of his Freehold, or Liberties, or free Customs, or be outlawed, or exiled, or any other wise destroyed; nor will We not pass upon him, nor [^{X5}condemn him,] but by lawful judgment of his Peers, or by the Law of the Land. We will sell to no man, we will not deny or defer to any man either Justice or Right.

Editorial Information

X5 Variant reading of the text noted in *The Statutes of the Realm* as follows: *deal with him*,

XXX.....F18

Textual Amendments

F18 C. 30 repealed by Statute Law (Repeals) Act 1969 (c. 52), Sch. Pt. I

XXXI.....F19

Textual Amendments

F19 C. 31 repealed by Statute Law Revision Act 1863 (c. 125) and Statute Law (Ireland) Revision Act 1872 (c. 98)

XXXII.....F20

Textual Amendments

F20 C. 32 repealed by Statute Law Revision Act 1887 (c. 59)

Changes to legislation: There are currently no known outstanding effects for the Magna Carta (1297). (See end of Document for details)

XXXIII. F21

XXXIV.

Textual Amendments

F21 Cc. 33, 34 repealed by [Statute Law Revision Act 1863 \(c. 125\)](#) and [Statute Law \(Ireland\) Revision Act 1872 \(c. 98\)](#)

XXXV F22

Textual Amendments

F22 C. 35 repealed by [Sheriffs Act 1887 \(c. 55\)](#), s. 39, **Sch. 3**

XXXVI. F23

XXXVII

Textual Amendments

F23 Cc. 36, 37 repealed by [Statute Law Revision Act 1863 \(c. 125\)](#) and [Statute Law \(Ireland\) Revision Act 1872 \(c. 98\)](#)

General Saving. Observance of these Liberties. Subsidy, in respect of this Charter and Charter of the Forest.

Reserving to all Archbishops, Bishops, Abbots, Priors, Templars, Hospitallers, Earls, Barons, and all Persons, as well Spiritual as Temporal, all their [^{x6}free Liberties] and free Customs, which they have had in time passed. And all these Customs and Liberties aforesaid, which We have granted to be holden within this our Realm, [^{x7}as much as appertaineth to Us and our Heirs, we shall observe; and] all Men of this our Realm, as well Spiritual as Temporal, [^{x8}as much as in them is, shall observe the same against all Persons, in like wise.] And for this our Gift and Grant of these Liberties, and of other contained in our Charter of Liberties of our Forest, the Archbishops, Bishops, Abbots, Priors, Earls, Barons, Knights, Freeholders, and other our Subjects, have given unto Us the Fifteenth Part of all their Moveables. And We have granted unto them on the other part, (^{x9}) that neither We nor our Heirs shall procure or do any thing whereby the Liberties in this Charter contained shall be infringed or broken. And if any thing be procured by any person contrary to the premises, it shall be had of no force nor effect. These being Witnesses; Lord [^{x10}B.] Archbishop of Canterbury, E. Bishop of London, J. Bishop of Bathe, P. of Winchester, H. of Lincoln, R. of Salisbury, W. of Rochester, W. of Worcester, J. of Ely, H. of Hereford, R. of Chichester, W. of Exeter, Bishops; the Abbot of St. Edmonds, the Abbot of St. Albans, the Abbot of [^{x11}Bello,] the Abbot of St. Augustine's in Canterbury, the Abbot of Evesham, the Abbot of Westminster, the Abbot of [^{x12}Bourgh St. Peter,] the Abbot of Reding, the Abbot of Abindon, the Abbot of Malmsbury, the Abbot of Winchcomb, the Abbot of Hyde, the Abbot of Certesey, the Abbot of Sherburn, the Abbot of Cerne, the Abbot of [^{x13}Abbotebir,] the Abbot of Middleton, the Abbot of Seleby, the Abbot of Cirencester; H. de Burgh [^{x14}Justice,] H. Earl of Chester and Lincoln, W. Earl of Salisbury, W. Earl of Warren, G. de Clare Earl of Gloucester and [^{x15}Hereford,] W. de Ferrars Earl of Derby, W. de Mandeville Earl

Changes to legislation: There are currently no known outstanding effects for the Magna Carta (1297). (See end of Document for details)

of Essex, H. de Bygod Earl of Norfolk, W. Earl of Albemarle, H. Earl of Hereford, J. Constable of Chester, R. de Ros, R. Fitzwalter, R. de Vyponte, W. de Bruer, R. de Muntefichet, P. Fitzherbert, W. de Aubenie, F. Gresly, F. de Breus, J. de [^{X16}Monemue,] J. Fitzallen, H. de Mortimer, W. de Beauchamp, W. de St. John, P. de Mauly, Brian de Lisle, Thomas de Multon, R. de Argenteyn, G. de Nevil, W. de Mauduit, J. de Balun, and others. (^{X17})

Editorial Information

- X6** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Liberties*
- X7** Variant reading of the text noted in *The Statutes of the Realm* as follows: *on our part, towards our men,*
- X8** Variant reading of the text noted in *The Statutes of the Realm* as follows: *shall observe on their part towards their men*
- X9** Variant reading of the text noted in *The Statutes of the Realm* as follows: *for us and our heirs,*
- X10** Variant reading of the text noted in *The Statutes of the Realm* as follows: *S*
- X11** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Battel.*
- X12** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Peterborough*
- X13** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Abbotsbury*
- X14** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Chief Justicer*
- X15** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Hertford*
- X16** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Monmouth*
- X17** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Given at Westminster the eleventh day of February in the ninth year of our Reign.*

We, Ratifying and approving these Gifts and Grants aforesaid, confirm and make strong all the same for Us and our Heirs perpetually, and by the Tenor of these Presents do renew the same: Willing and granting for Us and our Heirs, that [^{X18}this Charter and] all and singular his Articles for ever shall be stedfastly, firmly, and inviolably observed; [^{X19}and if] any Article in the same Charter contained yet hitherto peradventure hath not been kept [^{X20}We will and by authority royal command from henceforth firmly they be observed].

Editorial Information

- X18** Variant reading of the text noted in *The Statutes of the Realm* as follows: *the Charter aforesaid in*
- X19** Variant reading of the text noted in *The Statutes of the Realm* as follows: *even although*
- X20** Not in Original.

In Witness whereof We have caused these our Letters Patents to be made. [^{X21}T. Edward our son at Westminster, the twenty-eighth day of March in the twenty-eighth year of our Reign.]

Changes to legislation: There are currently no known outstanding effects for the Magna Carta (1297). (See end of Document for details)

Magna Carta de lib'tatibz Angl', et de lib'tatibz forrestr',
confirmata a R. Eduardo, Anno r'sui vicesimo q'nto xlvj'.

In dorso
Rotali.

Ex magna Rot. Sui. in Tur.
Lond. m. 40, 39, 38
¶ EDWARDUS dei gra Rex
Angl' Dñs Hibñi & Dux Aquil'
Omnibz ad quos pñentes litte
pvenit saltem. Inspecimus mag-
nam cartam dñi H. quondam
Regis Angl' pñi nri de libertatibz
Angl' in hac verba. Henricus dei
gra Rex Angl' Dñs Hibñe, Dux
Normani, Aquil' & Comes
Andegavi, Archiep's, Ep's, Abba-
tibz, Prioribz, Comitibz, Baro-
nibz, Vicecomitibz, Prepositis,
Ministris, & omibz, Balfis &
fidelibz suis pñentem cartam
inspectat saltem. Scitis qđ nos
initiatu dei, & p salute anime
nre, & animas antecessorū &
successorū nrorū, ad exaltandem
rē eccl'ie, & emendandem regni
nri, spontanea & bona voluntate
nra, dedim' & concessim'
Archiep's, Ep's, Abbatibz,
Prioribz, Comitibz, Baronibz, &
omibz de regno nro, has libtates
subscriptas, tenendas in regno
nro Angl' imppetuū.

In p'mis concessim' deo, &
hac pñenti carta nra confir-
mavim' p nob' & hered' nris
imppetuū, qđ eccl'ia Angli-
cana libera sit, & habeat
omnia iura sua integra, &
libtates suas illasas. Conces-
sim' eciam & dedim' omibz
liberis hominibz regni nri, p
nob' & heredibz nris imppetuū,
has libtates subscriptas,
tenendas & tenendas eis &
hered' suis, de nob' & hered' nris
imppetuū.

II-VIII.
Civitas Londin' Beat' omnes
libertates suas antiquas, & con-
suetudines suas. Prefec-
tos volum' & concedim', qđ omnes
Civitates alie, & Burgi, &
Ville, & Baronies de quinq'
portubz, & ses port', habeant
omnes libtates, & libas
consuetudines suas.

X-XXVIII.
Nullus liber homo capiatur vel
imprisonet', aut dissiciatur de
libo tñi suo, vel libertatibz, vl
libis consuetudinibz suis, aut
vilage' aut exolet aut aliquo
modo destruat', nec sup eum
themas, nec sup eis mittent', nisi
p legale iudiciū pñi suoz, vel
p legem terre. Nulli vendem',
nulli negalim', aut differem'
rectum vel justiciam.
XXX-XXXVII.
Et salve sint Archiep's, Ep's,
Abbatibz, Prioribz, Templar',
Hospitalit', Comitibz Baronibz,
& omibz aliis, tam eccl'asticis
pñentibz q'm secularibz, omnes
libtates & libe consuetudines,
quas prius fuerunt. Omnes autē
consuetudines & libtates fide-
litas, quas concessim' in regno
nro tenendas, q' nri ad nos pñent
erag' nros, Omnes de regno nro,
tam cl'ci, q'm laici, observet',
q' nri ad se pertinet, erag' suos.
Pro hac autē donacione et con-
cessione libtati ista, & aliis
contentis in carta nra de libtat-
ibz forrestr', Archiep's, Ep's,
Abbes, Priores, Comites, Baro-
nes, Milites, libe tenentes, &
omnes de regno nro, dederūt nob'
quintam decimam pñem omniū
mobiliū suoz. Concessim'

eciam eisdem, p nob' & hered'
nris, qđ nec nos, nec heredes
nri, aliquod pñentem, p quod
libtates in hac carta contente
inferant' vel infirmant'. Et si
ab aliquo contra hoc aliquid
pñentem fuerit, nichil valeat,
& p nullo tenet'. His testibz dñs
S. Cantuari' Archiep's, E. Lon-
don' Ep's, J. Balfio Ep's, P.
Wynch' H. Lincoln' R. Sui. W.
Roff', W. Wygorn', J. Ebor', H.
Hereforden', R. Ciceri', W.
Exon' Ep's. Abbe Sci Edmundi,
Abbe Sci Albani, Abbe de
Bello, Abbe Sci Augustini Can-
tuar', Abbe de Evesham, Abbe
de Westm', Abbe de Burgo Sci
Petri, Abbe de Reading, Abbe de
Alyngham, Abbe de Malmesbur',
Abbe de Wykeham, Abbe
de Hida, Abbe de Cisterseye,
Abbe de Shroton, Abbe de
Cerne, Abbe de l'Abboton, Abbe
de Middilton, Abbe de Selby,
Abbe de Cirencester,
H. de Burgo l'Parisiensis, H.
Comite Cestr' & Lincoln', W.
Comite Sui, W. Comite Warw',
G. de Clare Comite Gloucestr' &
Hertford, W. de Ferrat Comite
Dorh', W. de Mandevill Comite
Essex', H. le Bygod Comite

*Almonerius l.
*Tutill' nro l.

Norff', W. Comite Albemarle,
H. Comite Hereford, J. Con-
stabul' Cestr', R. de Rox', R.
filio Walfi, R. de Vefi Ponte, W.
de Bruch', R. de Muntfichet, P.
filio Herbi, W. de Aubeny, F.
Gresly, F. de Breui, J. de
Moseme, J. fiti Alani, H. de
Mortuo Mari, W. de Bello
Campo, W. de Scto Joh'e, P. de
Malo Lacu, Britano de Insula,
Thoma de Mullofi, R. de Argen-
teit', G. de Nevill, W. Manduit,
J. de Balun & aliis. Dat' apud
Westm' xj. die Febr' anno r. h.
nono.

Nos autem donades & con-
cessionēs pñcias ratas herites &
gratas, eas p nob' & Hereditibz
nris, concedim' & confirmam',
easq' tenore pñentiu innovam',
volentes & concedentes, p nob'
& hereditibz nris, qđ carta pñcia
in omibz & singlis suis articulis
imppetuū firmū & inviolabiliter
observet', eciam si aliqui articuli
in eadem carta contenti, hucusq'
forsitan non fuerint observati.
In cuj' rei testimoniu' has lit'as
nras fieri fecim' patentes. T.
Edwardo filio nro apud Westm',
duodecimo die Octobris anno r. h.
Vicesimo Quinto.

Editorial Information

X21 The Old Translations read These Reverend Fathers being Witnesses; R. Archbishop of Canterbury Primate of England, A. Bishop of Duresme, and other; Given at Westminster, with our own hand, the twenty-eighth day of the month of March, the twenty-eighth year of our reign.
This agrees with the Old Printed Copies of the Latin Text:
But read
Witness Edward our Son at Westminster, the Twelfth day of October in the Twenty-fifth Year of our Reign.

Changes to legislation: There are currently no known outstanding effects for the Magna Carta (1297). (See end of Document for details)

Editorial Information

- X6** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Liberties*
- X7** Variant reading of the text noted in *The Statutes of the Realm* as follows: *on our part, towards our men,*
- X8** Variant reading of the text noted in *The Statutes of the Realm* as follows: *shall observe on their part towards their men*
- X9** Variant reading of the text noted in *The Statutes of the Realm* as follows: *for us and our heirs,*
- X10** Variant reading of the text noted in *The Statutes of the Realm* as follows: *S*
- X11** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Battel.*
- X12** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Peterborough*
- X13** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Abbotsbury*
- X14** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Chief Justicer*
- X15** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Hertford*
- X16** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Monmouth*
- X17** Variant reading of the text noted in *The Statutes of the Realm* as follows: *Given at Westminster the eleventh day of February in the ninth year of our Reign.*
- X18** Variant reading of the text noted in *The Statutes of the Realm* as follows: *the Charter aforesaid in*
- X19** Variant reading of the text noted in *The Statutes of the Realm* as follows: *even although*
- X20** Not in Original.
- X21** The Old Translations read These Reverend Fathers being Witnesses; R. Archbishop of Canterbury Primate of England, A. Bishop of Duresme, and other; Given at Westminster, with our own hand, the twenty-eighth day of the month of March, the twenty-eighth year of our reign.
This agrees with the Old Printed Copies of the Latin Text:
But read
Witness Edward our Son at Westminster, the Twelfth day of October in the Twenty-fifth Year of our Reign.

Changes to legislation:

There are currently no known outstanding effects for the Magna Carta (1297).